

1 AN ACT relating to animal health emergencies and declaring an emergency.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 39A.020 is amended to read as follows:

4 As used in KRS Chapters 39A to 39F, unless the context requires otherwise:

- 5 (1) "Adjutant General" means the executive head of the Department of Military Affairs
6 vested with general direction and control authority for the department and the
7 division of emergency management;
- 8 (2) **"Animal health emergency" means an incident or situation which poses a major**
9 **threat to the safety or health of livestock as defined in KRS 246.010, poultry as**
10 **defined in KRS 246.010, or other domesticated animal so as to cause or threaten**
11 **to cause the spread of disease, starvation, deadly injury, or other potential loss of**
12 **life;**
- 13 **(3)** "Catastrophe" means a disaster or series of concurrent disasters which adversely
14 affect the entire Commonwealth of Kentucky or a major geographical portion
15 thereof;
- 16 ~~**(4)**~~~~**(3)**~~ "Chief executive officer" means a:
17 (a) County judge/executive of a county;
18 (b) Mayor of a consolidated local government;
19 (c) Mayor of an urban-county government;
20 (d) Chief executive officer of a charter county government;
21 (e) Chief executive officer of a unified local government; or
22 (f) Mayor of a city;
- 23 ~~**(5)**~~~~**(4)**~~ "Comprehensive emergency management program" means the public safety
24 program developed, organized, implemented, administered, maintained, and
25 coordinated by the Division of Emergency Management and local emergency
26 management agencies created pursuant to the provisions of KRS Chapters 39A to
27 39F, to assess, mitigate, prepare for, respond to, or recover from, an emergency,

1 declared emergency, disaster, or catastrophe, or threat of any of those, as
2 contemplated in KRS 39A.010 or as defined in this section;

3 ~~(6)~~~~(5)~~ "Coordination" means having and exercising primary state or local executive
4 branch oversight for the purpose of organizing, planning, and implementing;

5 ~~(7)~~~~(6)~~ "County" means a county, urban-county government, charter county
6 government, consolidated local government, or unified local government;

7 ~~(8)~~~~(7)~~ "Declared emergency" means any incident or situation declared to be an
8 emergency, disaster, or catastrophe by executive order of the Governor, or a county
9 judge/executive, or a mayor, or the chief executive of other local governments in
10 the Commonwealth pursuant to the provisions of KRS Chapters 39A to 39F;

11 ~~(9)~~~~(8)~~ "Director" means the director of the Division of Emergency Management of
12 the Department of Military Affairs;

13 ~~(10)~~~~(9)~~ "Disaster" means any incident or situation declared as such by executive
14 action of the Governor, or the President of the United States, pursuant to federal
15 law;

16 ~~(11)~~~~(10)~~ "Disaster and emergency response" means the performance of all emergency
17 functions, other than war-related functions for which military forces are primarily
18 responsible, including but not limited to: direction and control, incident command,
19 or management; communications; fire protection services; police services; medical
20 and health services; ambulance services; rescue; search and rescue or recovery;
21 urban search and rescue; engineering; alerting and warning services; resource
22 management; public works services; nuclear, chemical, biological, or other
23 hazardous material or substance monitoring, containment, decontamination,
24 neutralization, and disposal; emergency worker protection, site safety, site
25 operations and response planning; evacuation of persons; emergency welfare
26 services; emergency transportation; physical plant protection; temporary restoration
27 of public utility services; emergency lighting and power services; emergency public

1 information; incident investigation, hazards analysis, and damage assessment; and
2 other functions related to effective reaction to a disaster or emergency or
3 catastrophe, or the potential, threatened, or impending threat of any disaster or
4 emergency or catastrophe, together with all other activities necessary or incidental
5 to the preparation for and carrying out of the functions set out in this subsection;

6 **(12)**~~[(11)]~~ "Division" means the Division of Emergency Management of the Department
7 of Military Affairs;

8 **(13)**~~[(12)]~~ "Emergency" means any incident or situation which poses a major threat to
9 public safety so as to cause, or threaten to cause, loss of life, serious injury,
10 significant damage to property, or major harm to public health or the environment;

11 **(14)**~~[(13)]~~ ~~(a)~~ "Executive action":

12 **(a)** Means:

- 13 1. All orders and guidelines related to a COVID-19 declared emergency
14 issued by the Governor or any state agency, the President of the United
15 States or any federal agency, or a local governmental agency; and
- 16 2. Industry-specific guidelines related to a COVID-19 declared emergency
17 adopted by a state agency that govern the industry; and

18 (b) **Does not**~~["Executive action"]~~:

- 19 1. ~~Does not~~ Mean informal or indefinite statements or recommendations
20 made by government officials; **or**~~and~~
- 21 2. ~~Does not~~ Create a duty of care;

22 **(15)**~~[(14)]~~ "Integrated emergency management system" means the unified and
23 multidisciplinary disaster and emergency response infrastructure developed in the
24 Commonwealth, under the coordination of the division, using methods which align
25 state or local administrative, organizational, and operational resources, to
26 accomplish the mission, goals, and objectives of the comprehensive emergency
27 management program of the Commonwealth;

1 ~~(16)~~~~(15)~~ "Local disaster and emergency services organization" means that organization
2 of public and private entities developed to carry out the multiagency disaster and
3 emergency response of a city, county, urban-county or charter county pursuant to
4 KRS Chapters 39A to 39F;

5 ~~(17)~~~~(16)~~ "Local emergency management agency" means the agency created, operated,
6 and maintained to coordinate the local comprehensive emergency management
7 program and disaster and emergency response of a city, county, and urban-county
8 or charter county government pursuant to KRS Chapters 39A to 39F;

9 ~~(18)~~~~(17)~~ "Local emergency management director" or "Local director" means the
10 executive head of the local emergency management agency, appointed pursuant to
11 the provisions of KRS Chapters 39A to 39F;

12 ~~(19)~~~~(18)~~ "State emergency management agency" means the Division of Emergency
13 Management of the Department of Military Affairs; and

14 ~~(20)~~~~(19)~~ "State emergency management director" means the director of the Division of
15 Emergency Management.

16 ➔Section 2. KRS 39A.100 is amended to read as follows:

17 (1) In the event of the occurrence or threatened or impending occurrence of any of the
18 situations or events enumerated in KRS 39A.010, 39A.020, or 39A.030, the
19 Governor may declare, in writing, that a state of emergency exists. The Governor
20 shall have and may exercise the following emergency powers during the period in
21 which the state of emergency exists:

22 (a) To enforce all laws, and administrative regulations relating to disaster and
23 emergency response and to assume direct operational control of all disaster
24 and emergency response forces and activities in the Commonwealth;

25 (b) To require state agencies and to request local governments, local agencies,
26 and special districts to respond to the emergency or disaster in the manner
27 directed;

1 (c) To seize, take, or condemn property, for the duration of the emergency, and
2 only for public use as defined in KRS 416.675, excluding firearms and
3 ammunition, components of firearms and ammunition, or a combination
4 thereof, for the protection of the public or at the request of the President, the
5 Armed Forces, or the Federal Emergency Management Agency of the United
6 States, including:

- 7 1. All means of transportation and communication;
- 8 2. All stocks of fuel of whatever nature;
- 9 3. Food, clothing, equipment, materials, medicines, and all supplies; and
- 10 4. Facilities, including buildings and plants, but excluding houses of
11 worship, except to the extent that such houses have become unsafe to a
12 degree that would justify condemnation in the absence of a state of
13 emergency.

14 Compensation for property seized, taken, or condemned under this paragraph
15 shall be determined using the process in KRS 416.540 to 416.670 to
16 determine value;

17 (d) To sell, lend, give, or distribute any of the property under paragraph (c) of this
18 subsection among the inhabitants of the Commonwealth and to account to the
19 State Treasurer for any funds received for the property;

20 (e) To make compensation for the property seized, taken, or condemned under
21 paragraph (c) of this subsection;

22 (f) To exclude all nonessential, unauthorized, disruptive, or otherwise
23 uncooperative personnel from the scene of the emergency, and to command
24 those persons or groups assembled at the scene to disperse. A person who
25 refuses to leave an area in which a written order of evacuation has been issued
26 in accordance with a written declaration of emergency or a disaster may be
27 forcibly removed to a place of safety or shelter, or may, if this is resisted, be

- 1 arrested by a peace officer. Forcible removal or arrest shall not be exercised as
2 options until all reasonable efforts for voluntary compliance have been
3 exhausted;
- 4 (g) To declare curfews and establish their limits;
- 5 (h) To prohibit or limit the sale or consumption of goods, in the event of a
6 shortage of goods, excluding firearms and ammunition, components of
7 firearms and ammunition, or a combination thereof, or commodities for the
8 duration of the emergency;
- 9 (i) To grant emergency authority to pharmacists pursuant to KRS 315.500, for
10 the duration of the emergency;
- 11 (j) To request any assistance from agencies of the United States as necessary and
12 appropriate to meet the needs of the people of the Commonwealth;
- 13 (k) Upon the recommendation of the Secretary of State, to declare by executive
14 order a different time or place for holding elections in an election area for
15 which a state of emergency has been declared for part or all of the election
16 area. The election shall be held within thirty-five (35) days from the date of
17 the suspended or delayed election. The executive order shall remain in effect
18 until the date of the suspended or delayed election regardless of the time
19 limitations in KRS 39A.090 and shall not be changed except by action of the
20 General Assembly. The State Board of Elections shall establish procedures for
21 election officials to follow. Any procedures established under this paragraph
22 shall be subject to the approval of the Secretary of State and the Governor by
23 respective executive orders; and
- 24 (l) Except as prohibited by this section or other law, to take action necessary to
25 execute those powers enumerated in paragraphs (a) to (k) of this subsection.
- 26 (2) Within thirty (30) days of a declared emergency, and every thirty (30) days
27 thereafter, the Governor shall report to the General Assembly, if in session, or to the

1 Legislative Research Commission if the General Assembly is not in session, on a
2 form provided by the Commission detailing:

3 (a) All expenditures relating to contracts issued during the emergency under KRS
4 45A.085 or 45A.095, or under any provision for which a state agency does not
5 solicit bids or proposals for a contract; and

6 (b) All revenues received from the federal government in response to the declared
7 emergency, any expenditures or expenditure plan for the federal funds by
8 federal program, the state agency or program that was allocated the federal
9 funds, and any state fund expenditures required to match the federal funds.

10 (3) In the event of the occurrence or threatened or impending occurrence of any of the
11 situations or events contemplated by KRS 39A.010, 39A.020, or 39A.030, which in
12 the judgment of a local chief executive officer is of such severity or complexity as
13 to require the exercise of extraordinary emergency measures, the county
14 judge/executive of a county other than an urban-county government, or mayor of a
15 city or urban-county government, or chief executive of other local governments or
16 their designees as provided by ordinance of the affected county, city, or urban-
17 county may declare in writing that a state of emergency exists, and thereafter,
18 subject to any orders of the Governor, shall have and may exercise for the period as
19 the state of emergency exists or continues, the following emergency powers:

20 (a) To enforce all laws and administrative regulations relating to disaster and
21 emergency response and to direct all local disaster and emergency response
22 forces and operations in the affected county, city, urban-county, or charter
23 county;

24 (b) To exclude all nonessential, unauthorized, disruptive, or uncooperative
25 personnel from the scene of the emergency, and to command persons or
26 groups of persons at the scene to disperse. A person who refuses to leave an
27 area in which a written order of evacuation has been issued in accordance

1 with a written declaration of emergency or a disaster may be forcibly removed
2 to a place of safety or shelter, or may, if this is resisted, be arrested by a peace
3 officer. Forcible removal or arrest shall not be exercised as options until all
4 reasonable efforts for voluntary compliance have been exhausted;

5 (c) To declare curfews and establish their limits;

6 (d) To order immediate purchase or rental of, contract for, or otherwise procure,
7 without regard to procurement codes or budget requirements, the goods and
8 services essential for protection of public health and safety or to maintain or
9 to restore essential public services; and

10 (e) To request emergency assistance from any local government or special district
11 and, through the Governor, to request emergency assistance from any state
12 agency and to initiate requests for federal assistance as are necessary for
13 protection of public health and safety or for continuation of essential public
14 services.

15 (4) In the event of the occurrence or threatened or impending occurrence of any
16 animal health emergency, which in the judgment of the Commissioner of
17 Agriculture in consultation with the state veterinarian, is of such severity or
18 complexity as to require the exercise of extraordinary emergency measures, the
19 Commissioner of Agriculture may declare, in writing, that an animal health
20 emergency exists and, subject to any order of the Governor, may exercise
21 emergency powers for the period the animal health emergency exists or continues
22 to:

23 (a) Order the immediate purchase or procurement of or contract for veterinary
24 services from any veterinarian or veterinarian technician licensed in the
25 Commonwealth or any other state;

26 (b) Request the secretary of the Transportation Cabinet to issue any permits
27 and waive any regulatory requirements relating to the transportation of

1 animal feed stock or medicine, including but not limited to:

2 1. Vehicle weight limits; or

3 2. Driver safety restrictions;

4 and the secretary shall not deny the request absent good cause;

5 (c) Order the quarantine of any livestock, poultry, or other domesticated animal

6 and any articles or equipment capable of acting as a vector of

7 communicable disease;

8 (d) Establish roadblocks on any roadway within the Commonwealth in order to

9 prevent the transportation of the livestock, poultry, domesticated animal,

10 article, or equipment ordered quarantined, with the assistance of:

11 1. State law enforcement;

12 2. Local law enforcement; or

13 3. Game wardens employed by the Kentucky Department of Fish and

14 Wildlife Resources;

15 (e) Order the immediate purchase, procurement, or rental of or contract for,

16 without regard to procurement requirements established in KRS Chapter

17 45A, the goods and services, including materials and services needed to stop

18 the spread of a communicable disease, essential for the protection of public

19 health and safety or to maintain or restore essential public services; and

20 (f) Request any emergency assistance as is necessary for the protection of

21 public health and safety or for the continuation of essential public services

22 from:

23 1. A local government or special district;

24 2. A state agency; or

25 3. The Governor in order to initiate any request for federal assistance.

26 (5) Nothing in this section shall be construed to allow any governmental entity to
27 impose additional restrictions on:

- 1 (a) The lawful possession, transfer, sale, transport, carrying, storage, display, or
2 use of firearms and ammunition or components of firearms and ammunition;
3 (b) The right of the people to exercise free speech, freedom of the press, to
4 petition their government for redress of injuries, or to peaceably assemble; or
5 (c) The right of the people to worship, worship in person, or to act or refuse to act
6 in a manner motivated by a sincerely held religious belief.

7 ~~(6)(5)~~ Nothing in this section shall be construed to allow any governmental entity to
8 impose restrictions on the right of the people to:

- 9 (a) Peaceably assemble; or
10 (b) Worship, worship in person, or to act or refuse to act in a manner motivated
11 by a sincerely held religious belief.

12 ~~(7)(6)~~ (a) A governmental entity shall not prohibit or restrict a religious
13 organization from operating or engaging in religious services during a
14 declared emergency to the same or any greater extent than other organizations
15 or businesses that provide essential services necessary and vital to the health
16 and welfare of the public are prohibited or restricted.

17 (b) Paragraph (a) of this subsection shall not prohibit the Governor from requiring
18 religious organizations to comply with neutral health, safety, or occupancy
19 requirements that are applicable to all organizations and businesses that
20 provide essential services. However, no health, safety, or occupancy
21 requirement may impose a substantial burden on a religious organization or its
22 services unless applying the burden to the religion or religious service in the
23 particular instance is essential to further a compelling governmental interest
24 and is the least restrictive means of furthering that compelling governmental
25 interest.

26 (c) A governmental entity shall not take any discriminatory action against a
27 religious organization.

1 ~~(8)~~~~(7)~~ As used in this section:

2 (a) "Discriminatory action" includes any action taken by a governmental entity
3 wholly or partially on the basis that such organization is religious, operates or
4 seeks to operate during a state of emergency, or engages in the exercise of
5 religion as protected under the First Amendment to the Constitution of the
6 United States to:

- 7 1. Adversely alter in any way the tax treatment of, cause any tax, penalty,
8 or payment to be assessed against, or deny, delay, or otherwise make
9 unavailable an exemption from taxation;
- 10 2. Disallow, deny, or otherwise make unavailable a deduction for state tax
11 purposes of any charitable contribution made to or by a religious
12 organization;
- 13 3. Impose, levy, or assess a monetary fine, fee, civil or criminal penalty,
14 damages award, or injunction; or
- 15 4. Withhold, reduce, exclude, terminate, adversely alter the terms or
16 conditions of, or otherwise make unavailable or deny any:
 - 17 a. State grant, contract, subcontract, cooperative agreement,
18 guarantee, loan, scholarship, or other similar benefit from or to a
19 religious organization;
 - 20 b. Entitlement or benefit under a state benefit program from or to a
21 religious organization; or
 - 22 c. License, certification, accreditation, recognition, or other similar
23 benefit, position, or status from or to any religious organization;

24 (b) "Governmental entity" means:

- 25 1. The Commonwealth or any of its political subdivisions;
- 26 2. Any agency of the state described in KRS 12.020;
- 27 3. Any person acting under color of state law; and

1 4. Any private person suing under or attempting to enforce a law, rule, or
2 administrative regulation adopted by the state or any of its political
3 subdivisions;

4 (c) "Religious organization" means:

5 1. A house of worship, including churches, synagogues, shrines, mosques,
6 and temples;

7 2. A religious group, corporation, association, educational institution,
8 ministry, order, society, or similar entity, regardless of whether it is
9 integrated or affiliated with a church or other house of worship; or

10 3. Any officer, owner, employee, manager, religious leader, clergy, or
11 minister of an entity or organization described in this paragraph; and

12 (d) "Religious services" means a meeting, gathering, or assembly of two (2) or
13 more persons organized by a religious organization for the purpose of
14 worship, teaching, training, providing educational services, conducting
15 religious rituals, or other activities that are deemed necessary by the religious
16 organization for the exercise of religion.

17 ~~(9)~~~~(8)~~ A religious organization may assert a violation of subsection ~~(5)~~~~(4)~~(c),
18 ~~(6)~~~~(5)~~(b), or ~~(7)~~~~(6)~~ of this section as a claim against a governmental entity in any
19 judicial or administrative proceeding or as a defense in any judicial or
20 administrative proceeding without regard to whether the proceeding is brought by
21 or in the name of the governmental entity, any private person, or any other party.
22 Sovereign, governmental, and qualified immunity are waived to the extent of
23 liability created under this section. An action asserting a violation of this section
24 may be commenced, and relief may be granted, without regard to whether the
25 religious organization commencing the action has sought or exhausted
26 administrative remedies.

27 ~~(10)~~~~(9)~~ Remedies available to a religious organization under this section against a

1 governmental entity include:

- 2 (a) Declaratory relief;
- 3 (b) Injunctive relief to prevent or remedy a violation of this section or the effects
- 4 of such violation;
- 5 (c) Compensatory damages for pecuniary and nonpecuniary losses;
- 6 (d) Reasonable attorneys' fees and costs; and
- 7 (e) Any other appropriate relief.

8 ~~(11)~~~~(10)~~ Remedies available to a religious organization under this section against a
9 person not acting under color of state law shall be limited to declaratory and
10 injunctive relief.

11 ~~(12)~~~~(11)~~ This section:

- 12 (a) Shall be construed in favor of a broad protection of free exercise of religion;
- 13 (b) Shall be in addition to the protections provided under state and federal laws
- 14 and constitutions. Nothing in this section shall be construed to:
 - 15 1. Preempt or repeal any state law or local ordinance that is equally or
 - 16 more protective of free exercise of religion; or
 - 17 2. Narrow the meaning or application of any state law or local ordinance
 - 18 protecting free exercise of religion; and
- 19 (c) Applies to, and in cases of conflict, supersedes:
 - 20 1. Each statute of the Commonwealth that infringes upon the free exercise
 - 21 of religion protected by this section, unless a conflicting statute is
 - 22 expressly made exempt from the application of this section; and
 - 23 2. Any ordinance, rule, administrative regulation, order, opinion, decision,
 - 24 practice, or other exercise of a governmental entity's authority that
 - 25 infringes upon the free exercise of religion protected by this section.

26 ~~(13)~~~~(12)~~ A religious organization shall bring an action to assert a claim under this
27 section no later than two (2) years from the date the person knew or should have

1 known that a discriminatory action or other violation of this section was taken
2 against that religious organization.

3 ➔Section 3. Whereas in the event of a natural disaster or declared animal health
4 emergency, it is imperative that critical resources and services be accessed immediately
5 in order to contain and remedy the disaster, an emergency is declared to exist, and this
6 Act takes effect upon its passage and approval by the Governor or upon its otherwise
7 becoming a law.